Amended and Restated Operating Agreement (Excerpt)

Dated as of January 15, 2024, as amended by the First Amendment dated August 1, 2025

Preamble

This Operating Agreement of Ashby Mill Owner LLC, a Virginia limited liability company (the Company), is entered into by Riverside Heritage Managing Member LLC, as Managing Member, and Northfield Historic Fund LLC, as Investor Member.

The Company owns the historic building known as the Ashby Mill, 410 Bridge Street, Danville, Virginia (the Building), and intends to rehabilitate it and claim the federal historic rehabilitation tax credit.

Article 2 - Organization

Section 2.1 The Company is organized as a Virginia limited liability company to acquire, rehabilitate, own and operate the Building.

Section 2.2 The Company shall not engage in any business other than the ownership and operation of the Building without the consent of the Investor Member.

Article 3 - Members

Section 2.3 The Managing Member is an affiliate of the Developer. The Investor Member holds a 99.99% interest in tax credits, profits and losses.

Section 3.4 No person shall be admitted as a member except as provided in this Agreement.

Article 5 - Allocations

Section 3.1 Profits, losses and credits shall be allocated among the members in accordance with their percentage interests, subject to the regulatory allocations.

Section 3.2 Net cash flow shall be distributed in the order set out in this Article after payment of approved operating expenses and reserves.

Article 9 - Management

Section 3.3 The Managing Member shall manage the business of the Company, subject to the major decisions requiring Investor Member consent.

Section 4.4 Major decisions include the sale or refinancing of the Building, any amendment to the budget above ten percent and the admission of new members.

Article 10 - Reports

Section 4.1 The Managing Member shall deliver quarterly financial statements and annual audited statements to the Investor Member.

Section 4.2 The Investor Member may remove the Managing Member for cause, including fraud, gross negligence or a material breach of this Agreement.

Article 12 - Dissolution

Section 4.3 The Company shall be dissolved upon the sale of all of its assets or as otherwise provided by law.

Section 5.4 This Agreement shall be governed by the laws of the Commonwealth of Virginia.

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Article 4 - Capital contributions

Section 4.1 Investor Member capital contribution. The Investor Member shall contribute a total of $4,329,600 to the capital of the Company, payable in installments as set out in Section 4.2.

Section 4.1(a) The capital contribution has been calculated on projected federal credits of $4,920,000 at $0.88 per credit dollar.

Section 4.1(b) The capital contribution is subject to adjustment if the federal credits finally certified differ from the projected amount.

Section 4.2 - Installments

Section 4.2(a) $865,920, being 20% of the capital contribution, at closing of this Agreement.

Section 4.2(b) $1,298,880, being 30% of the capital contribution, upon completion of construction. [Recital added by First Amendment:] the Building was placed in service on July 15, 2025.

Section 4.2(c) $1,831,840, being 40% upon receipt of Part 3 approval from the National Park Service.

Section 4.2(d) $432,960, being 10% of the capital contribution, upon stabilization at 93% occupancy for three consecutive months.

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Article 6 - Developer fee

Section 6.1 The Company shall pay the Developer a development fee for services in connection with the rehabilitation of the Building.

Section 6.2 Any part of the fee not paid from capital sources shall be deferred and paid from cash flow.

Section 6.3 The total development fee shall not exceed $2,500,000 without the prior written consent of the Investor Member.

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Article 7 - Guaranties

Section 7.1 The Guarantor shall guarantee completion of the rehabilitation in accordance with the plans and specifications.

Section 7.4 Credit recapture guaranty. The Guarantor shall indemnify the Investor Member for any recapture of federal credits caused by an act or omission of the Managing Member, up to a maximum of $1,500,000.

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Article 8 - Compliance

Section 8.1 Compliance Period: five years beginning on the placed-in-service date of the Building.

Section 8.2 No sale or transfer of the Building or any unit during the Compliance Period without Investor Member consent, including any conversion of the Building or any part of it to condominium ownership.

Section 8.3 The Managing Member shall operate the Building so as to avoid any recapture of the federal credits.

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Exhibit C - Form of Guaranty

1. The Guarantor unconditionally guarantees to the Investor Member the obligations of the Managing Member described in Article 7 of the Operating Agreement.

2. The total liability of the Guarantor for recapture under this Guaranty shall not exceed $1,000,000.

3. This Guaranty shall remain in effect until the end of the Compliance Period.

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